

INDEPENDENT CONTRACTOR & CONSULTING AGREEMENT

This Agreement is made as of August 5, 2026 (the "Effective Date") by and between: **CSI INTERFUSION INC.**, a corporation organized under the laws of Bellevue corporation ("Company").

AND

Suwanrat Phanasri a consultant organized under the laws of **Thailand**, with address at **Thailand**("Service Provider"). Collectively referred to as the "Parties."

1 SCOPE OF SERVICES

Service Provider shall perform the IT consulting and technical services described in Exhibit A (the "Services"). This agreement may be modified only by a written agreement signed by authorized representatives of both parties. Service Provider shall assign qualified personnel to perform the Services and shall remain solely responsible for such personnel. Service Provider retains full control over the manner, means, and personnel used to perform the Services.

2 PERFORMANCE & PERSONNEL

Service Provider shall perform the Services professionally and timely in accordance with the schedules agreed in Exhibit A. Service Provider may replace assigned personnel with qualified substitutes upon prior written notice to Company. Unless otherwise agreed in Exhibit A, Service Provider will provide the equipment, technology, and infrastructure necessary to perform Services at its expense. Service Provider will ensure such items are compatible with company's equipment, technology, and infrastructure as necessary to perform Services.

Service Provider will prepare and furnish to Company, upon request, reports on the actual progress of the Services in form and content acceptable to Company. As used in this Agreement, the term "Service Provider" shall include Service Provider's employees, agents and subcontractors (if any), and the terms and conditions of this Agreement will apply to and be binding upon such employees, agents and subcontractors.

All personnel assigned by Service Provider to perform Services hereunder shall deliver all contracted services exclusively within **Thailand**. Service Provider shall not alter the actual working location or conduct remote cross-region delivery without the

Company's prior written approval; any ad-hoc business travel or short-term off-site work requires advance written notification and written consent from the Company.

3 REPRESENTATIONS AND WARRANTIES

Service Provider represents and warrants that:

- a) It has full legal capacity to enter into and perform its obligations under this Agreement, holds all necessary licenses, qualifications, and approvals required by the laws of its country/region of residence to legally perform the Services;
- b) It has a valid personal tax identification number or equivalent and is capable of complying with all local tax filing requirements.
- c) If the Law requires Company to withhold taxes from payments to Service Provider, Company shall withhold those taxes and pay them to the appropriate taxing authority. Service Provider acknowledges and agrees to such withholding.
- d) It is an independent contractor and not an employee of Company; it is the sole employer of its personnel (if any) and is fully responsible for their employment compliance;
- e) The Services and work product shall not infringe any third-party intellectual property rights;
- f) Its performance does not breach any existing agreement or obligation with a third party;
- g) It will comply with all applicable laws of its country/region of residence and the United States (to the extent applicable to cross-border services).

4 COMPENSATION & INVOICING

Company shall pay Service Provider the fees set forth in Exhibit A. Service Provider shall submit detailed invoices monthly. Company pay all undisputed invoices within thirty (30) days after receipt of a properly submitted request of service fee, unless a different payment period is specified in the applicable Exhibit A. Company is not liable for any taxes Service Provider is legally obligated to pay, including net income or gross receipts tax. Company shall provide Service Provider with a tax withholding certificate or proof of payment upon request, for the purpose of foreign tax credit in Service Provider's country of tax residence.

4.1 Invoicing

Service Provider shall submit invoices for compensation due under this Agreement or any Exhibit through Company's designated invoicing portal (or such other method as Company may specify in writing). Service Provider shall not charge Company for researching, reporting on, or correcting invoice-related errors. Service Provider shall not date any payment application earlier than the date payment is earned under the applicable Exhibit. Unless otherwise specified in a Exhibit, Service Provider may submit invoices monthly in arrears or upon completion of specified milestones as set forth in the applicable Exhibit.

4.2 Payment Information

1) Accuracy of Payment & Compliance

Service Provider shall ensure all submitted payment and bank information is true and accurate, and shall be fully liable for any payment delay, misdirection or loss caused by incorrect information. All valid invoices must contain detailed hours and deliverables.

Upon Company's request, Service Provider shall submit duly completed Form W-8BEN (individual), W-8BEN-E or W-9 (if applicable).

2) Bank Account Change Procedure

Any bank account change must be notified to Company in hard-copy written form, signed by Service Provider's authorized representative, and received by Company at least fifteen (15) calendar days in advance of the change effective date.

Company shall not be liable for any payment issues arising from Service Provider's failure to comply with the above change notice requirements.

5 TERM AND TERMINATION

The Term commences on the Effective Date and continues as specified in Exhibit A.

- a) This Agreement commences on the Effective Date and continues for the initial term set forth on the first page of this Agreement, unless:
 - (1) terminated earlier in accordance with this Section 5; or
 - (2) extended by a written amendment signed by both parties ("Term").
- b) Termination for Convenience.

- c) Either party may terminate this Contract for any reason or no reason at any time by providing 30 days' prior written notice to the other party (or such longer notice period as required by applicable local law).
- d) If Company terminates for convenience, Company's sole obligation is to pay Service Provider for:
 - (1) Deliverables accepted prior to the effective date of termination; and
 - (2) Services performed before the effective date of termination, provided that such Services are documented and verifiable.
- e) In no event shall Company be obligated to pay for any uncompleted Services, future lost profits, or any form of severance, termination indemnity, or similar payment, as Service Provider is an independent contractor and not an employee of Company.
- f) Immediate Termination.

Company may terminate this Agreement, any SOW, or any related service engagement immediately upon written notice to Service Provider if Service Provider:

- i. breaches any provision regarding Confidentiality, Data Protection, Security, or Intellectual Property.
- ii. violates any applicable law, export control, or anti-corruption regulation.
- iii. commits fraud, gross negligence, or willful misconduct.
- iv. assigns this Agreement or subcontracts any material obligation without Company's prior written consent.
- v. or otherwise engages in conduct that, in Company's reasonable judgment, poses an immediate risk to Company's business, systems, or reputation.

The Company reserves the right to pursue legal remedies and claim all reputation damage, economic losses and other reasonable expenses arising therefrom.

Obligations Upon Termination (Transition & Exit).

Upon termination or expiration of this Agreement or any SOW, Service Provider shall immediately:

- (1) Return / Deactivate Credentials – Return all Company-issued physical and logical access credentials (including badges, keys, VPN tokens, and system logins) and ensure all Company system accounts are deactivated.
- (2) Deliver Work in Progress – Deliver to Company all in-progress Deliverables, source code, documents, data, models, and any other materials created or used in connection with the Services, regardless of completeness.

(3) Transition Assistance – Upon the Company’s request, the Service Provider shall render reasonable transition support to the Company or its designated party for a maximum period of thirty (30) calendar days upon termination or expiration of this Agreement. All fees payable for such transition assistance shall be charged in accordance with the standard service rates stipulated in the applicable Exhibit A. If no relevant fee is specified therein, the transition service shall be charged at the same regular service fee applicable under this Agreement, instead of general reasonable market rate. The Service Provider shall not refuse or delay providing required transition services on the ground of fee disputes.

(4) Certify Destruction of Confidential Information – Permanently delete, destroy, or erase all Confidential Information of Company (including any copies, extracts, or derivatives) from all systems, devices, cloud storage, and backup media under Service Provider’s control, and upon Company’s request, provide a written certification of such destruction signed by an authorized representative of Service Provider.

(5) Cease Use of Company IP – Immediately cease all use of Company’s Intellectual Property, including but not limited to trademarks, logos, software, APIs, proprietary data, and trade secrets. Service Provider shall not retain any right to use such IP for any purpose after termination.

(6) No Continuing Rights – Acknowledge that termination of this Agreement does not create any right to employment, rehiring, priority treatment, or any employee-related benefits. Service Provider remains an independent contractor and is not entitled to severance, unemployment benefits, or similar payments from Company under any circumstances.

6 INDEPENDENT CONTRACTOR RELATIONSHIP

Service Provider is an independent contractor and is not an employee, agent, or legal representative of Company. This Agreement does not create a partnership, joint venture, or employment relationship. Service Provider shall not bind Company contractually or hold itself out as an agent of Company. Company shall provide clear service requirements and deliverables in writing; Service Provider shall retain full control over the manner, means, and schedule of performing the Services, subject only to the agreed deliverables and deadlines, which is a key distinction from an employment relationship

under IRS guidelines. Service Provider shall be solely responsible for its own business operations, expenses, and compliance with labor laws.

The parties are independent contractors. Service Provider's personnel are not, and shall not be deemed, employees of Company. Service Provider is solely responsible for hiring, supervising, directing, and paying its personnel, including all wages, taxes, withholding, benefits, and insurance.

This Agreement does not create an exclusive relationship between the parties, and Company does not commit to acquiring any minimum number of Services from Service Provider. Service Provider is free to perform services for any other person or entity, including competitors of Company. There are no third-party beneficiaries under this Agreement unless provided otherwise.

7 TAX, LABOR & EMPLOYMENT COMPLIANCE

In addition to the foregoing clauses, the Service Provider shall withhold and pay income tax, social security, unemployment insurance and other statutory contributions for its personnel in accordance with the laws of its country/region of residence, comply with local labor laws and regulations, and obtain workers' compensation and employer's liability insurance as required. The Service Provider shall fully indemnify the Company against all claims, penalties and fines arising from improper employee classification, violations of labor and tax laws, or any breach by the Service Provider or its personnel. Under no circumstances shall the Company be deemed a co-employer or joint employer of the Service Provider's personnel.

8 INSURANCE & RISK OF LOSS

Service Provider will maintain, at its sole cost and expense, sufficient insurance coverage to meet its obligations under this Agreement and applicable law, in order to transfer to Service Provider's insurers the economic risk of liability arising from professional errors, omissions, negligent acts and accidents caused by Service Provider or its personnel in the performance of the Services; such required coverage includes, but is not limited to, commercial general liability insurance and professional liability (errors and omissions) insurance covering contractual liability, professional negligence, breach of duty, and third-party intellectual property infringement.

Additional Requirements.

- a) **Proof of Insurance.** Service Provider shall have the obligation to submit a certificate of insurance or other satisfactory proof evidencing the coverage required under this Section upon Company's reasonable request.
- b) **No Workers' Compensation or Employer's Liability.** Service Provider acknowledges that it is an independent contractor and not an employee of Company. Accordingly, Service Provider is **not** required to maintain, and Company shall not be liable for, any workers' compensation insurance, employer's liability insurance, or unemployment insurance on behalf of Service Provider or its personnel. Service Provider remains solely responsible for securing any such coverage as required by law for itself and its own employees (if any).
- c) **No Equipment Coverage.** Service Provider is solely responsible for all tools, equipment, devices, and other property used in performing the Services. Company has no obligation to insure, repair, or replace any such property. Nothing in this Section requires Service Provider to maintain insurance covering loss or damage to its own equipment.

9 CONFIDENTIALITY & INTELLECTUAL PROPERTY

9.1 Confidentiality

Service Provider shall keep all Confidential Information (including but not limited to Company's business plans, data, client information, and Service-related materials) strictly confidential during the Term and at all times thereafter. Service Provider shall not disclose or use any Confidential Information for any purpose other than performing the Services.

9.2 IP Assignment

All work product, inventions, software, code, materials, and deliverables (excluding Service Provider's pre-existing open-source software, third-party licensed components, and pre-existing intellectual property) created under this Agreement are the exclusive property of Company. Service Provider irrevocably assigns all right, title, and interest to Company and waives all moral rights. Service Provider shall provide written notice of any pre-existing intellectual property included in the work product prior to commencement of Services.

9.3 Open Source & Third-Party IP

Service Provider shall not include unauthorized third-party software or open-source components (including GPL) without Company's prior written approval. Service Provider shall provide a bill of materials (BOM) upon Company's request.

9.4 DATA PROTECTION

Service Provider shall strictly abide by all applicable data protection and data security laws and regulations including but not limited to GDPR and PIPL. Service Provider shall process personal data only for the purpose of performing services hereunder, and shall not collect, use, disclose or disseminate such data beyond the scope of service needs. No cross-border data transfer shall be conducted without the prior written consent of the Company. In the event of any data leakage, unauthorized access, data loss or other data security incidents, Service Provider shall notify the Company in writing within forty-eight (48) hours upon discovery. Upon termination or completion of this Agreement, Service Provider shall immediately return or permanently delete all acquired personal data and shall not retain any copies in any form without the Company's written approval.

9.5 AI system disclosure

In compliance with Company policies, Service Provider shall not train, fine-tune, deploy or operate any AI System, nor incorporate AI-generated content into project deliverables, without Company's prior written approval. Such conducts shall be regarded as AI System provision and require mandatory disclosure.

Microsoft first-party productivity tools (e.g., Copilot, Azure OpenAI) may be used for daily productivity, on the condition that all AI-generated content is manually reviewed before submission. This limited usage does not qualify as project AI deployment.

Any unauthorized or undisclosed use of AI System shall constitute a material breach. The Company may reject deliverables, withhold payment, terminate this Agreement and claim relevant losses.

10 NONSOLICITATION

Prohibition on Solicitation in the Name of the Company and Improper Solicitation. During the Term and for a period of 6 months (or such shorter period as required by applicable law) after termination of this Agreement, Service Provider shall not:

- a) Solicit or Hire Company's Employees.
- b) Directly or indirectly solicit, recruit, or hire any individual who is an employee of Company at the time of such solicitation or hiring, provided that this restriction shall not apply to: (i) general public solicitations not specifically targeted at Company's employees; or (ii) individuals who respond to such general solicitations without any prohibited solicitation by Service Provider.
- c) No Restriction on Soliciting Independent Contractors.
- d) For the avoidance of doubt, Service Provider may freely solicit, engage, or contract with any independent contractor or service provider who performs services for Company, as such relationship is not an employment relationship. Nothing in this Section shall be construed to restrict Service Provider from working with other independent contractors, including those who currently or previously provided services to Company.
- e) No Disparagement.
- f) Service Provider shall not make any false, misleading, or disparaging statements about Company, its affiliates, or its respective officers, directors, employees, products, or services to any third party. This provision does not prohibit truthful statements made in good faith in the course of legal proceedings, government investigations, or as required by law.
- g) No Restriction on Customer or Partner Solicitation.
- h) Service Provider may freely solicit or provide services to any customer, partner, or other business relation of Company, provided that Service Provider does not violate any separate confidentiality obligation or use Company's Confidential Information in connection with such solicitation.

11. INDEMNIFICATION

11.1 Indemnification by Service Provider

Service Provider shall indemnify, defend, and hold harmless Company, its Affiliates, and their respective officers, directors, and employees from and against any and all claims, losses, damages, liabilities, penalties, and reasonable attorneys' fees (collectively, "Losses") arising out of or relating to:

- a) any breach of this Agreement or any SOW by Service Provider or its personnel;

- b) any negligent act, error, omission, or willful misconduct of Service Provider or its personnel in the performance of the Services;
- c) any infringement or misappropriation of any third-party intellectual property rights (including patent, copyright, trademark, or trade secret) by Service Provider or its personnel;
- d) Service Provider's failure to pay any taxes, withholdings, social security contributions, workers' compensation premiums, unemployment insurance contributions, or any other similar obligations required by applicable law with respect to Service Provider or its personnel;
- e) any claim that Service Provider or its personnel is entitled to employee benefits, wages, overtime pay, sick leave, paid time off, or any other compensation or benefit from Company, including any claim of misclassification as an employee (whether brought by Service Provider, its personnel, or any government agency); and
- f) any violation of applicable law by Service Provider or its personnel in connection with this Agreement.

11.2 No Waiver of Independent Contractor Status

The indemnification obligations set forth in this Section are commercial risk allocation provisions and shall not be construed as evidence of an employment relationship. In particular, Service Provider's agreement to indemnify Company for tax, withholding, benefit, or misclassification claims (Section 7 reflects Service Provider's acknowledgment that it is solely responsible for its own tax and benefit obligations as an independent contractor, and does not constitute an admission that any misclassification has occurred.)

12 PERMANENT ESTABLISHMENT DISCLAIMER

Service Provider shall not act in any way that causes Company to be deemed to have a permanent establishment or taxable presence in any jurisdiction. Service Provider shall ensure that all personnel performing Services under this Agreement are either Service Provider's direct employees or independent contractors, and shall not perform services on Company's behalf in a manner that creates a permanent establishment. All cross-border personnel arrangements shall comply with applicable local labor and tax laws. All activities are performed in Service Provider's own name and on its own behalf.

13 GENERAL PROVISIONS

13.1 Notices

All communications shall be in writing to the addresses in the Signature Page. Notice shall be deemed received 5 business days after mailing or immediately upon electronic delivery.

13.2 Assignment

Service Provider may not assign this Agreement.

13.3 Governing Law & Venue

This Agreement shall be governed by and construed in accordance with the laws of the State of Washington, United States of America, excluding its conflict of laws principles. Any dispute arising out of or in connection with this Agreement, including without limitation disputes relating to its conclusion, performance, breach or termination, shall first be settled by friendly negotiation between the two Parties.

If the dispute fails to be resolved within thirty (30) days after the commencement of negotiation, either Party shall submit the dispute to the courts having exclusive jurisdiction in King County, Washington for litigation settlement.

13.4 Entire Agreement

This Agreement (including Exhibits A) constitutes the entire agreement between the Parties and supersedes all prior oral or written agreements.

13.5 Severability

If any provision of this Agreement is invalid, the remainder shall remain in full force and effect.

14 ANTI-BRIBERY & CORRUPT PRACTICES

- a) Service Provider and its personnel shall comply with all applicable anti-bribery and anti-corruption laws, including the United States Foreign Corrupt Practices Act (FCPA), and any local laws prohibiting corrupt practices.
- b) Service Provider shall not, directly or indirectly, offer, promise, or authorize any payment or thing of value to any government official, employee of a state-owned

enterprise, or third party for the purpose of obtaining or retaining business or any improper advantage.

- c) Service Provider shall maintain accurate books and records reflecting all transactions under this Agreement and shall provide such records to Company upon request.

SIGNATURE PAGE

COMPANY: CSI INTERFUSION INC.

Signature: _____

Print Name: Allen Chen

Title: CEO

CSI Interfusion Inc.

11808 Northup Way, Suite W290 Bellevue, WA 98005

Date: 8/4/2026

Service Provider: Suwanrat Phanasri

Signature: _____

Print Name: Suwanrat Phanasri

Address: 148, Village No. 2, Dan Chang Subdistrict, Na Klang District, Nong Bua
Lam Phu Province

Date: 8/4/2026

EXHIBIT A – SERVICES, FEES

Section 1 Services

(a) Assigned Consultant

The personnel set forth in the table below shall perform the work for the Company, the scope of which shall be determined by the Company. Service Provider shall comply with Code of Conduct, data protection requirements, and security policies as notified by Company.

[Assigned Consultant-Name]	[Position Name]	[Assigned Consultant-Location]	[Estimated Start Date]	[Estimated End Date]
Suwanrat Phanasri	Safety Specialist	Bangkok of Thailand	8/17/2026	6/30/2027

(b) Overview of Services

For the purposes of this Exhibit A, section (c)(Services) describes the details of the Services, including project expectations and Supplier activities. Service provider will perform or deliver the Services under the Agreement as a work made for hire.

(c) Services

Service Item:

Supplier will perform or deliver the Services to Company under the Agreement as a work made for hire.

Supplier will manage and direct the day-to-day work of their personnel in the performance of the Services. All communication between Company and Supplier will be via Supplier's lead associated with the Services and will not be directly communicated with Supplier's personnel performing the day-to-day activities of the Services.

In addition to the requirements set forth in the Agreement, the following additional specifications will apply:

- i. Roles and responsibilities for service delivery and management.
 - a) Timely completion of tasks assigned

- b) Improving efficiency & ensuring high quality work by Supplier resources
- c) Responding to enquiries from different teams.
- d) Supplier shall perform Thailand Data center sites' Safety Specialist vendor PM role for the Company, the scope of which shall be determined by the Company's client, Microsoft (Client).

(d) Reporting requirements

Service Provider will provide the following reports (e.g., operational, management, and executive) to Company per the schedule indicated below.

Report Description	Schedule	Format	Data Source
Daily Status Report	Daily	Email/BI Dashboard/PPT /teams	ADO DevOps, Business portal and other sources
Business Review	Monthly/Quarterly	Email/BI Dashboard/PPT /teams	ADO DevOps, Business portal and other sources

Section 2 Deliverables and Payments

(a) Deliverables

Service Provider shall complete and deliver all applicable Services to the Company on a monthly basis. The monthly service fee is outcome-based, with a maximum cap of \$ 4,020 per month.

(b) Expense

Service Provider is responsible for expenses it incurs while providing Services (including taxes, VAT, seat fees, discount charges, COLA, Fx, or other ancillary costs) unless Company agrees otherwise in writing. Actual travel expenses shall be settled in accordance with the Company's prevailing travel standards.

Company reserves the right to terminate this Agreement pursuant to the service failure clauses of the Master Agreement.

SIGNATURE PAGE

COMPANY: CSI INTERFUSION INC.

Signature: _____

Print Name: Allen Chen

Title: CEO

CSI Interfusion Inc.

11808 Northup Way, Suite W290 Bellevue, WA 98005

Date: 8/4/2026

Service Provider: Suwanrat Phanasri

Signature: _____

Print Name: Suwanrat Phanasri

Address: 148, Village No. 2, Dan Chang Subdistrict, Na Klang District, Nong Bua
Lam Phu Province

Date: 8/4/2026